

NATIONAL COMPANY LAW APPELLATE TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

Comp. App. (AT) (Ins) No. 1378 of 2026

IN THE MATTER OF:

**Dharmendra Dhelariya Ex-Resolution Professional of
Maya Construction Pvt. Ltd.**

...Appellant

Versus

Rajendra Prasad Jhedu

...Respondent

Present:

For Appellant : Mr. Pratik Thakkar, Advocate

For Respondent : Appearance not marked

O R D E R
(Hybrid Mode)

07.08.2026 The instant appeal has been preferred by the erstwhile Resolution Professional of M/s. Maya Construction Company Pvt. Ltd., challenging some observations made by the Learned Adjudicating Authority in impugned judgment dated 08.07.2026, passed in Interlocutory Application (Plan) No. 6 of 2026 of 2026 in Company Petition (IB) No. 190/NCLT/AHM/2023.

Learned Counsel for the Appellant submits that this appeal has been filed with the limited relief of expunging the remarks occurring in paragraph 23(b) of the impugned judgment, against the Appellant whereby it has been observed that it was the duty of the Appellant to place the cogent material before the Learned Adjudicating Authority to substantiate the alleged SARFAESI recoveries with regard to correct complete financial position of the CD.

Having regard to the order intended to be passed, we do not find it necessary to issue notice to the Respondent, as intending order would not reflect on the rights of the Respondents in any way.

We have considered the submissions made by Learned Counsel for the Appellant and have also perused the observation which, according to Learned Counsel for the Appellant, is reflecting adversely on the conduct of the Resolution Professional. The observation which has aggrieved the Resolution Professional to prefer the instant appeal is reproduced as under;-

“The Suspended Director has raised an objection that the Financial Creditor had effected recoveries under the provisions of the SARFAESI Act and that the admitted claim did not reflect the impact of such recoveries. It is contended that IDBI Bank, being the sole Financial Creditor, had allegedly recovered approximately Rs. 2.50 Crores through SARFAESI proceedings against the secured assets of the properties belonging to the guarantors and mortgagors connected with the credit facilities extended to the Corporate Debtor, but no corresponding reduction was made in its admitted claim, thereby resulting in an inflated debt position. The Applicant has contended that the issue is academic, since the Committee of Creditors comprised only a sole Financial Creditor and any variation in the claim amount would neither alter the constitution of the Committee of Creditors nor the distribution contemplated under the Resolution Plan. However, this Tribunal notes that the Resolution Professional is under a statutory obligation to place the correct and complete financial position of the Corporate Debtor before the CoC as well as this Tribunal, and no documentary proof or cogent material has been placed on record by either party to substantiate the alleged SARFAESI recoveries or their exact impact on the admitted claim. In the absence of any verifiable material on record, this Tribunal is unable to satisfy itself regarding the correctness of

the financial basis on which the Resolution Plan has been place for approval.”

A perusal of the aforesaid observation would reveal that Learned Adjudicating Authority has only highlighted the duties of the Resolution Professional for placing the correct and complete financial position of the CD before the CoC as well as before the Tribunal and further that no documented proof or cogent material has been placed by either party to substantiate the alleged SARFAESI recoveries or with regard to their exact impact on the admitted claim.

We are, at the outset, of the considered view that these observations may not be termed as adverse to the Appellant and by passing the aforesaid observations, the Learned Adjudicating Authority has only highlighted the duties of the Resolution Professional which are otherwise contained under Section 18 and 25 of the Insolvency and Bankruptcy Code, 2016.

So far as the latter part of the observation with regard to the fact that the parties have not placed any cogent material to substantiate the alleged SARFAESI recoveries or their exact impact on the admitted claim, the same also cannot be attributed to the Appellant (Resolution Professional) as the objection with regard to the fact that the Financial Creditor had affected recoveries under the provision of the SARFAESI act and the admitted claim did not reflected such recoveries was raised by the Suspended Director and in our considered opinion it was the duty of the Suspended Director to substantiate these allegations alleged by him by tendering any cogent evidence. Thus, it is evident that the observation with regard to the parties not placing on record any cogent material could only be attributed to the Suspended Director and not to the Appellant.

Thus, keeping in view all the facts and circumstance of the case and for the reasons aforesaid, we dispose of the instant appeal with the observation that aforesaid observation made by the Learned Adjudicating Authority occurring in

paragraph no. 23(b) of the impugned order shall not be treated as adverse to the Appellant (erstwhile RP).

There is no orders as to costs. Pending I.A's are also disposed of.

[Justice Mohammad Faiz Alam Khan]
Member (Judicial)

[Arun Baroka]
Member (Technical)

KS/MR